KINDLY NOTE THAT THE BELOW (A) INSTRUCTIONS AND INFORMATION (B) TERMS REGARDING YOUR PARTICIPATION IN THIS CHALLENGE SHALL APPLY BETWEEN YOU ("CHALLENGE SOLVER"), AND CBM PTE LTD ("CHALLENGE OWNER"):

A. INSTRUCTIONS AND INFORMATION

1. Confidentiality

1.1 We understand that Challenge Solver are keen to participate and share their ideas with the Challenge Owner. Submissions will be treated as confidential by the Challenge Owner, but all information contained in the submissions may be used by Challenge Owner and IMDA in evaluating a submission for the purposes of a challenge.

2. Intellectual Property and Exclusivity

2.1 Ideas in and of themselves are not protected, and you must be careful to ensure that you do not divulge any confidential information, proprietary information, know-how, or trade secrets.

2.2 Challenge Solver must read the terms set out below carefully. The Challenge Owner may include terms where Challenge Solver are to grant a limited and/or exclusive licence relating to the solutions proposed to the Challenge Owner. Challenge Solver must understand the terms before agreeing to the same.

3. Eligibility for Participation

3.1 You (or any of your teammates, if you are participating in the Challenge as a team) must not be a current employee of (a) the Challenge Owner, or (b) any other organisation who is involved in administering or organising the Challenge (including IMDA).

4. Submission Criteria

4.1 Incomplete entries will be deemed invalid and disqualified.

4.2 All submission materials must be presented and/or submitted in English language.

B. TERMS OF CONDITIONS ("TERMS")

1. Challenge Terms

1.1 The Challenge Solver and Challenge Owner (the "Parties" and each, individually, a "Party") accept and agree that they will be bound by the terms set out herein.

1.2 The Challenge Solver agrees to the instructions set out in paragraphs 3 and 4 of the Instructions and Information section on eligibility for participation and submission criteria.

1.3 The Challenge Solver shall abide by and accept as final and binding on the Challenge Solver, all of the Challenge Owner's decisions on all matters related to this Challenge, including decisions relating to eligibility, evaluation criteria, timelines, selection of finalists, modification, suspension or cancellation of the Challenge, and the conduct of discussions with one or more participants.

2. Confidentiality

2.1 "**Confidential Information**" means all confidential information indicated in writing or labelled as "confidential", "proprietary information" or where the circumstances of disclosure indicate that the information so disclosed is confidential or proprietary or all information which is deemed by the Parties to be confidential information or which is generated as a result of or in connection with the challenge and which is not generally available to the public.

2.2 **Use**. The Parties agree to maintain the confidence of Confidential Information and will only use Confidential Information for the purposes of evaluating, testing, validating, conducting proof-of-concept activities, internal demonstrations, security reviews, procurement assessments, internal approvals and negotiations relating to the Challenge. Without prejudice and in addition to the foregoing, the Parties shall not disclose Confidential Information, whether directly or indirectly (including publishing any reports containing any Confidential Information), to any third party without prior written approval of the other Party.

2.3 **Disclosure**. Confidential Information may only be disclosed to may be disclosed to the receiving Party's employees, officers, affiliates, related corporations, contractors, consultants, technical evaluators, auditors, insurers, regulators and professional advisers on a need-to-know basis, on a strictly need-to-know basis for the purpose set out in paragraph 2.2 above, and each Party shall also ensure that the same obligation of confidentiality shall at all times be observed and maintained by such employees or advisers to whom the Confidential Information is disclosed.

2.4 **Compelled Disclosure.** In addition, if the receiving Party becomes compelled (pursuant to any law or regulation or the requirements of any stock exchange or other regulatory authority with whose rules the receiving Party is required to comply) to disclose any part of the Confidential Information, the receiving party shall promptly (and, if practicable, before complying with any such requirement) notify the disclosing Party in writing of the same and of the action which is proposed to be taken in response. In such event, the receiving Party shall take full account of any reasonable request made by the disclosing Party, whether concerning resistance to the requirement or the form, manner or extent of disclosure, and the receiving Party shall only disclose such information to the extent that the receiving Party is so compelled to disclose. The receiving Party shall exercise its best efforts to ensure that confidential treatment to the maximum extent possible will be accorded to such Confidential Information.

2.5 **Ownership**. Confidential Information disclosed under these Terms shall at all times remain, as between the Parties, the property of the disclosing Party and does not grant the receiving Party any rights in any Confidential Information, other than the limited right to use the Confidential Information as permitted by these Terms.

2.6 **Exceptions**. Nothing in these Terms prohibits or limits either Party's use of information:

2.6.1 previously known to it;

2.6.2 which is or becomes publicly available through no breach of this agreement by the receiving party;

2.6.3 received from a third party without breach of any confidentiality obligation by such third party; or

2.6.4 independently developed by the receiving Party without use of the disclosing Party's Confidential Information. For avoidance of doubt, the Challenge Owner may continue existing projects, evaluate competing or similar third-party solutions, and independently develop similar solutions, provided it does not misuse the Challenge Solver's Confidential Information.

2.7 **Protection.** Each Party agrees to protect Confidential Information using the same means and standards it uses to protect its own confidential information, but in any event not less than reasonable means, to prevent the unauthorised, access, disclosure or use of Confidential Information.

3. Intellectual Property Rights

3.1 The Challenge Owner acknowledges the Challenge Solver's ownership of IP rights. All IP created from your work on the Challenge ("**Created IP**") will be owned by you as the Challenge Solver. The Challenge Solver, however, grants IMDA and the Challenge Owner a non-exclusive, royalty-free licence to view, consider, evaluate, test, reproduce, copy, configure, benchmark, validate, internally demonstrate and otherwise use the submission for Challenge-related evaluation and proof-of-concept purposes.

3.2 Save as specifically set out in this document, no licence to use or assignment of any IP is granted or shall occur, unless you and the Challenge Owner enter into a separate agreement with each other at point of finalist(s) selection.

3.3 Insofar as your submission uses or refers to any pre-existing IP, you must ensure that you have all the necessary rights and/or licences for the incorporation of such IP into your submission and/or any subsequent evaluation and use as part of the Challenge. The Challenge Solver represents and warrants that it owns or has obtained all necessary rights, consents and licences for the submission, and that the submission does not infringe any third-party intellectual property or confidentiality rights. You must also use all efforts to ensure that your submission does not infringe the IP rights of any third party.

3.4 **Extended Testing Licence**: By participating in the Challenge, you agree that, if selected as a finalist, it automatically grants the Challenge Owner a non-exclusive, royalty-free, worldwide licence of all IP for testing, evaluation, proof-of-concept, internal demonstration, security review and integration assessment, for a period of **12** months from the date your submission is selected as a finalist for the Challenge. To be clear, you are not obliged to grant the licence mentioned above until you and the Challenge Owner enter into a separate written agreement containing the terms of this licence.

3.5 **Exclusivity**: If the Challenge Solver's submission is selected as a finalist for the Challenge, you agree to enter into exclusive negotiations with the Challenge Owner to explore a commercial agreement with respect to your solution. The period of exclusive negotiations shall be for a period of **6** months from the date the Challenge ends, during which you agree that you shall not disclose, market, license, or enter into negotiations with third parties in relation to the finalist solution or any substantially similar solution

3.6 The Challenge Solver shall indemnify and hold harmless the Challenge Owner against all losses, claims, damages and expenses arising from any breach of this clause.

3.7 The Challenge Owner may terminate the exclusivity period at any time at its discretion.

3.8 Nothing in these Terms obligates the Challenge Owner to select any finalist, enter into any commercial agreement, deploy any solution, or reimburse any costs incurred by the Challenge Solver.

CORRESPONDENCE

Any questions pertaining to the Challenge may be submitted to IMDA via email at open_innovation@imda.gov.sg with the subject header beginning with "AI-Enabled Business Development and Tender Intelligence Platform for Facilities Management". All correspondence throughout the Challenge must be in the English language.